

HOUSE BILL 1438

By Reedy

AN ACT to amend Chapter 403 of the Private Acts of 1951; as amended and rewritten by Chapter 94 of the Private Acts of 2004; Chapter 82 of the Private Acts of 2006 and Chapter 60 of the Private Acts of 2014; and any other acts amendatory thereto, relative to the City of Erin.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.02, by deleting subdivision (a)(1).

SECTION 2. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.02, subdivision (a)(2), by deleting in the first sentence the language "shall mean a person elected to the Board of Mayor and Alderman" and substituting instead "shall mean a person elected to the Board of Mayor and Alderman".

SECTION 3. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.02, by deleting subdivision (a)(5).

SECTION 4. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.02, by deleting subdivision (a)(7) and substituting instead:

(7) "Elector" shall mean a person who is residing within the city, or who is a non-resident qualified to vote therein because of ownership of property therein amounting to

at least fifty percent (50%) fee simple interest in the ownership of the piece of property and can provide a certified copy of the deed or a certified copy of the tax records that provides the name(s) of the owner(s) of the property;

SECTION 5. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.02, by deleting subdivision (a)(9).

SECTION 6. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.02, subdivision (a)(11) by deleting the language "right-of-ways" and substituting instead "right-of-way".

SECTION 7. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.04, subdivision (a) by deleting the period at the end of the subdivision and replacing it with a semicolon.

SECTION 8. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.04 subdivision (b) by deleting the period at the end of the subdivision and replacing it with a semicolon.

SECTION 9. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.04 by deleting subdivision (c) and substituting instead:

c. To contract and be contracted with;

SECTION 10. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of

2014, and any other acts amendatory thereto, is amended in Article I, Section 1.04 by deleting subdivision (d) and substituting instead:

d. To appropriate and borrow money to provide for payment of the debts of the city, to authorize the expenditure of money for any municipal purpose or matter of national or state interest, and to appoint boards, commissions, and committees not in conflict with provisions in this charter or state law;

SECTION 11. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.04, by deleting subdivision (e), and substituting instead:

e. To acquire or receive, maintain, improve, sell, lease, mortgage or otherwise, dispose of, and hold in trust or otherwise any real personal, or mixed property, inside or outside the city;

SECTION 12. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.04, by deleting the periods at the end of subdivisions (f)-(s) and replacing them with a semicolon, and by adding the word "and" after the semicolon in subdivision (s).

SECTION 13. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article I, Section 1.04 by adding the following as a new subdivision (t):

t. To make appointments to boards and commissions as authorized by law.

SECTION 14. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article II, Section 2.01 by deleting the language "four year term" and substituting instead "four-year term".

SECTION 15. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and as amended by Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article II, Section 2.01 by adding the following new language as the last paragraph of the section:

No person shall be eligible for the offices of Mayor or Alderman, unless he or she is a qualified voter of said town or ward, and shall have resided within the corporate limits thereof, at least twenty-four (24) months continuously prior to his/her election. The general qualifications of persons permitted to hold public office are set out in Tennessee Code Annotated, Title 8, Chapter 18. All persons who are eligible for the offices of Mayor or Alderman must be:

- (1) At least eighteen (18) years of age;
- (2) A citizen of the United States;
- (3) A citizen of this state;
- (4) An inhabitant of the state, county, district, or circuit for the period required by the constitution and laws of the state; and
- (5) A resident of the City of Erin for at least two (2) years.

The following persons are ineligible to hold the offices of Mayor or Alderman:

- (1) Those who have been convicted of offering or giving a bribe, or of larceny, or any other offense declared infamous by law, unless restored to citizenship in the mode pointed out by law;
- (2) Those against whom there is a judgment unpaid for any moneys received by them, in any official capacity, due to the United States, to this state, or any county thereof;
- (3) Who are defaulters to the treasury at the time of the election, and the election of any such person to office shall be void;
- (4) Soldiers, seamen, marines, or airmen in the regular army or navy or air force of the United States;

(5) Members of Congress, and persons holding any office of profit or trust under any foreign power, other state of the union, or under the United States; and

(6) Those who have not been a resident of the City of Erin for at least two (2) years prior to his or her election.

SECTION 16. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article II, Section 2.02 by deleting the language "All person" in the first line of the section and substituting instead "All persons"; and by deleting the language "or considered an eligible elector" and substituting instead "or non-residents who are considered eligible electors".

SECTION 17. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article II, Section 2.03 by deleting the language "The Board shall be the final judge of the election and qualifications of its members."; and by deleting the language "twelve (12) hours" and substituting instead "forty-eight (48) hours".

SECTION 18. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article II, Section 2.05 by deleting subdivision (f).

SECTION 19. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article II, Section 2.06, by deleting the language "the mayor shall designate an alderman" and substituting instead "the Board of Mayor and Aldermen shall appoint an alderman".

SECTION 20. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article II, Section 2.07 by deleting the second sentence from the section and substituting instead:

Also, a vacancy shall exist if the mayor or an alderman moves his or her residence from the city, is convicted of malfeasance or misfeasance in office, a felony, or is removed from office pursuant to the ouster provisions of general law found in Tennessee Code Annotated, Title 8, Chapter 47.

SECTION 21. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article II, Section 2.08 by deleting the second sentence of the section and substituting instead "The Board shall deal with the various agencies, officers, and employees of the city, and shall not give orders to any subordinates of the mayor, either publicly or privately."; and by deleting the last sentence of the section and substituting instead "City of Erin employees shall not serve as Aldermen."

SECTION 22. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article II, Section 2.10 by deleting in the second-to-last sentence of the section the language "Amendments or ordinances and resolutions or parts thereof" and substituting instead "Amendments of ordinances and resolutions or parts thereof".

SECTION 23. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, Chapter 82 of the Private Acts of 2006, and any other acts amendatory thereto, is amended in Article III, Section 3.02(a) by deleting in the second-to-last sentence of the subsection the language "under a pay plan applying uniformly to all such officers", and by placing a period after the word "ordinances".

SECTION 24. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article III, Section 3.03 by deleting the section and substituting instead:

Section 3.03. Recorder. The Board of Mayor and Aldermen shall appoint a city recorder, who also may be appointed to the position of treasurer. The recorder shall serve for an indefinite term at the pleasure of the Board. The recorder or the recorder's

designee shall be responsible for keeping and preserving the city seal and all records of the corporation; attending meetings of the Board and keeping a journal of its proceedings at such meetings, including the names of members present and absent, the vote of each member on each question, each motion considered, and the title of each resolution or ordinance considered; and preparing and certifying copies of official records in the recorder's office, for which fees may be prescribed by ordinance. The recorder or the recorder's designee shall issue all privilege licenses and collect taxes on the same and shall collect all ad valorem and special taxes levied by the Board. The recorder or the recorder's designee shall have and perform such other duties as may be required by the mayor or the Board not in conflict with the provisions of this charter or laws of the state.

SECTION 25. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article III, Section 3.04 by deleting the second paragraph and substituting instead:

The treasurer shall make and present quarterly, or more frequently if the Board demands it, a full and explicit report of all moneys and disbursement of the same, that have come into the city's hands.

SECTION 26. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article III, Section 3.05 by deleting the first sentence of the section and substituting instead:

The Board of Mayor and Aldermen shall appoint a city attorney who shall serve at the pleasure of the Board, who shall be an attorney at law, entitled to practice law in the courts of the state of Tennessee.

SECTION 27. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article III, Section 3.07 by deleting the section and substituting instead the following:

Section 3.07. City judge. The Board of Mayor and Aldermen shall appoint a city judge that serves at the pleasure of the Board. The city judge shall recuse himself or herself from a case in which he or she is interested, he or she is related to the defendant by blood or by marriage within the third degree, or for any reason he or she believes that he or she will be prejudiced, and such a case, as well as cases, during the absence or disability of the city judge, shall be heard and decided by an acting city judge appointed by the Board of Mayor and Aldermen. The Board of Mayor and Aldermen may remove the acting city judge at any time without cause. The compensation of the city judge or an acting city judge shall be fixed by ordinance.

SECTION 28. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article III, Section 3.11 by deleting the last sentence of the section and substituting instead:

All such bonds shall be kept in the custody of the recorder, and said recorder shall file said bonds in a fireproof safe for safekeeping, subject at all times to the Board's inspection.

SECTION 29. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article III, Section 3.12 by deleting the section and substituting instead the following:

Section 3.12. Officers and employees not to profit from connections with city. No member of the governing body, Board of Zoning Appeals, Planning Commission, nor employee of the city shall profit personally, directly, or indirectly, from any contract, purchase, sale, or service between the city government and any person or company, nor shall any officer or employee accept any free or preferred service, benefits, or concessions from any person or company. This charter incorporates Tennessee Code Annotated, Sections 12-04-101 and 6-54-107, by reference.

SECTION 30. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in

Article IV, Section 4.02 by adding the language " or surplus " immediately after the language "The Board may sell any city property".

SECTION 31. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article IV, Section 4.03 by deleting the section and substituting instead:

Section 4.03. Property taxes. All property subject to taxation for state or county purposes may be subject to the property tax levied by the city.

SECTION 32. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article IV, Section 4.04 by deleting the section and substituting instead:

Section 4.04. Property tax levy. The Board of Mayor and Aldermen shall make a tax levy, expressed as a fixed rate per one hundred dollars (\$100) of assessed valuation, and if no tax levy is made within ninety (90) days prior to the tax due date, the property tax rate in effect the last fiscal year shall continue in effect as the tax rate for the new fiscal year.

SECTION 33. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article IV, Section 4.05 by adding the language " for each month " immediately after the language "penalty of three percent (3%) shall be added".

SECTION 34. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article IV, Section 4.07 by deleting the language "or after the due date of each installment if paid on an installment basis"; and by adding the language " per month " immediately after the language "subject to a penalty of three percent (3%)".

SECTION 35. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, Chapter 60 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article IV, Section 4.08 by deleting the language "two

thousand five hundred dollars (\$2,500)" and substituting instead "five thousand dollars (\$5,000) not previously budgeted and approved by ordinance".

SECTION 36. Chapter 403 of the Private Acts of 1951, as amended and rewritten by Chapter 94 of the Private Acts of 2004, and any other acts amendatory thereto, is amended in Article IV, Section 4.09 by deleting the section and substituting instead:

Section 4.09. Official depository. The Board of Mayor and Aldermen may select, in accordance with state law, an official depository or depositories for depositing and safekeeping of the funds of the city, and may require such collateral security as it deems necessary.

SECTION 37. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Erin. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 38. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 37.